

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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FRANKLYN THEN,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD POLICE OFFICER
GINA MESTRE, Shield No. 11607, NYPD POLICE
OFFICER THOMAS MULLARKEY, Shield No. 5409,
and NYPD POLICE OFFICERS JOHN/JANE DOES
NUMBERS 1-10,Plaintiff designates Bronx
County as the place of trial.

Defendants.

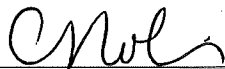
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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 5, 2022

Yours, etc.

CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES, PLLC
Attorneys for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER GINA MESTRE, SHIELD NO. 11607, 52nd Precinct; 3016
Webster Avenue, Bronx, NY 10467

NYPD POLICE OFFICER THOMAS MULLARKEY, SHIELD NO. 5409, 52nd
Precinct; 3016 Webster Avenue, Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

FRANKLYN THEN,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
GINA MESTRE, Shield No. 11607, NYPD POLICE
OFFICER THOMAS MULLARKEY, Shield No. 5409,
and NYPD POLICE OFFICERS JOHN/JANE DOES
NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants

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Plaintiff FRANKLYN THEN, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 18, 2021, at approximately 6:00 p.m., plaintiff FRANKLYN THEN, while lawfully in the vicinity of Davidson Avenue and West Kingsbridge Road in Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff was subjected to assault, battery, and use of excessive force in the form of unlawful strip search by the defendant officers, causing him to suffer humiliation as well as physical, mental, and emotional injuries. Plaintiff was then unlawfully imprisoned at the 52nd Precinct Police Station, as well as Bronx County Central Bookings for approximately 24 hours until plaintiff was arraigned in Criminal Court, charged with crimes he did not commit, and released. Plaintiff was denied the right to due process and a fair trial until the Criminal Possession charges against Plaintiff were thereafter dismissed and sealed on or around July 19, 2021. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48 Admin. Code §§ 8-8802, and his State and Federal constitutional common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, assaulted, battered, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff FRANKLYN THEN is a resident of the State of New York.
3. NYPD POLICE OFFICER GINA MESTRE, Shield No. 11607, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. NYPD POLICE OFFICER GINA MESTRE, Shield No. 11607, was at all times relevant herein, assigned to the 52nd Precinct.
5. NYPD POLICE OFFICER GINA MESTRE, Shield No. 11607, is being sued in her individual and official capacity.
6. NYPD POLICE OFFICER THOMAS MULLARKEY, Shield No. 5409, was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. NYPD POLICE OFFICER THOMAS MULLARKEY, Shield No. 5409, was at all times relevant herein, assigned to the 52nd Precinct.
8. NYPD POLICE OFFICER THOMAS MULLARKEY, Shield No. 5409, is being sued in his individual and official capacity.
9. New York City Police Officers John/Jane Does Numbers 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
10. NYPD Officers John/Jane Does Numbers 1-10 are being sued in their individual and official capacities.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible.

The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on November 4, 2021.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On July 18, 2021, at approximately 6:00 P.M., Plaintiff was lawfully present in the vicinity of Davidson Avenue and West Kingsbridge Road in Bronx, New York, when the defendant police officers unlawfully stopped, questioned, frisked, and falsely arrested Plaintiff without probable cause or legal justification.

19. On the day of the incident, Plaintiff was alone in his brother's car on West Kingsbridge Road when two or more uniformed NYPD officers pulled up behind him in a marked police vehicle.

20. The defendant officers turned on their lights and Plaintiff stayed seated in the car as the officers approached his window.

21. Plaintiff was then questioned by the defendant officers and told to step out of the vehicle, with which instruction Plaintiff complied and surrendered the appropriate documents.

22. Plaintiff was then subject to unlawful pat-down search by Defendant Officers, and no contraband was found.

23. Plaintiff then watched as the Defendant Officers performed an unlawful search of the vehicle, and no contraband was found.

24. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

25. Plaintiff was then unlawfully handcuffed by Defendant Officers.

26. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

27. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

28. Plaintiff did not resist arrest.

29. Plaintiff was then placed in the back of an NYPD vehicle and transported against his will to the 52nd Precinct police station where he was again unlawfully searched, fingerprinted, photographed, and detained in a holding cell.

30. Plaintiff was thereafter removed from his holding cell and taken into a bathroom at the 52nd Precinct with approximately 10 uniformed NYPD Officers and told to "strip down, bend over and squat."

31. In fear for his safety, the plaintiff asked the defendant officers on what grounds he was being subjected to this search, and at that point the defendant officers began to hold him down, strip him of his clothes, and punch him repeatedly in his stomach and ribs.

32. Plaintiff was then subjected to an unlawful and unnecessary cavity search as a crowd of officers assaulted and restrained him in the precinct bathroom, and again no contraband was found.

33. Plaintiff was then returned to the holding cell in nothing but his underwear and ripped shirt, where he was held for approximately 5-6 hours and denied a phone call.

34. Plaintiff asked to be taken for medical treatment for his ribs and stomach, which were injured and causing him great physical pain, but he was told that this would only extend his time in custody and was left in his cell to suffer.

35. From the 52nd Precinct, the plaintiff was taken to Bronx County Central Bookings where he was unlawfully detained in another holding cell, fingerprinted, and photographed.

36. The defendant police officers provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

37. Specifically, the defendant police officers falsely stated to the District Attorney's Office that Plaintiff was engaged in Criminal Possession of a Controlled Substance.

38. On July 19, 2021, after approximately 24 hours in unlawful custody, Plaintiff was arraigned in Bronx County Criminal Court, charged with crimes that the defendant officers had no basis to allege that he committed, and was offered an adjournment in contemplation of dismissal for the charge of driving with temporary tags as no evidence could be found for the false charge of Criminal Possession.

39. On or about July 19, 2021, all charges were dismissed and sealed in their entirety.

40. After his release from custody, the Plaintiff was seen by a doctor, who X-rayed him and treated him for internally bruised ribs, the pain from which bothered the Plaintiff for months after the incident.

41. Since the relevant incident, the Plaintiff has had trouble sleeping and increased anxiety due to the trauma and humiliation he experienced during his time at the 52nd Precinct on July 18, 2021.

42. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using excessive force, falsely arresting and imprisoning, and denying Plaintiff the right to due process and a fair trial.

43. The unlawful search, seizure, assault, battery, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

44. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The individually named police officer defendants while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

46. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

47. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

49. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

52. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

53. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

55. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

56. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

59. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

61. Defendants lacked probable cause to search Plaintiff.

62. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

66. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein

67. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

68. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

69. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

70. In withholding/creating false evidence against Plaintiff FRANKLYN THEN, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free from deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

71. As a result of the foregoing, Plaintiff FRANKLYN THEN sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligence

75. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. Defendants owed a duty of care to Plaintiff.

77. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by punching him during an unlawful strip search, causing him physical pain and injury as well as psychological and emotional injury.

78. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

79. All of the foregoing occurred without any fault or provocation by Plaintiff.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

83. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The use of excessive force by defendants by, amongst other things, punching him and subjecting him to a humiliating and unnecessary strip search, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

85. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Assault

86. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

88. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

NINTH CAUSE OF ACTION

Battery

92. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner, repeatedly punched him in the stomach and ribs, with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

94. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

97. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

TENTH CAUSE OF ACTION

Individual Defendant Officers' Violation of Plaintiff's AC 8-8802 Rights

98. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

100. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

101. The Defendant Officers, while in uniform, unlawfully seized, frisked, and strip-searched the Plaintiff, before detaining Plaintiff and further causing his detention for approximately 24 hours in total.

102. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION

Individual Defendant Officers' Failure to Intervene in Violation of Plaintiff's AC 8-8802 Rights

103. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

105. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

106. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-8802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

107. Defendants failed to intervene to prevent the unlawful conduct described herein, and thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

108. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TWELFTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officers' Violation of Plaintiff's AC 8-8802 Rights

109. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 108 with the same force and effect as if more fully set forth at length herein.

110. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as Special Patrolmen.

111. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

112. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

113. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

114. The Defendant Officers, while in uniform, unlawfully seized, frisked, and strip-searched the Plaintiff, before detaining Plaintiff and further causing his detention for approximately 24 hours.

115. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officers' Failure to Intervene in Violation of Plaintiff's AC 8-8802 Rights

116. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 115 with the same force and effect as if more fully set forth at length herein.

117. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as Special Patrolmen.

118. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the plaintiff for the wrongdoing of the covered individual Defendant Officers.

119. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

120. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C Admin. Code §§ 8-8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

121. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-8802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

122. Defendants failed to intervene to prevent the unlawful conduct described herein, and thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

123. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

124. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 123 with the same force and effect as if more fully set forth at length herein.

125. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, FRANKLYN THEN. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

126. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

127. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

128. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

129. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTEENTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

130. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 129 with the same force and effect as if more fully set forth at length herein.

131. By the actions described herein, Defendants engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to Plaintiff.

132. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

133. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

134. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

135. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SIXTEENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

136. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 135 with the same force and effect as if more fully set forth at length herein.

137. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

138. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SEVENTEENTH CAUSE OF ACTION

Failure to Intervene

139. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 138 with the same force and effect as if more fully set forth at length herein.

140. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

141. Defendants failed to intervene to prevent the unlawful conduct described herein.

142. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

143. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

144. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

145. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

146. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTEENTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

147. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 146 with the same force and effect as if more fully set forth at length herein.

148. Despite being aware that Plaintiff was suffering through severe pain from being assaulted by defendant officers and required additional treatment from medical professionals, defendants delayed Plaintiff's medical treatment and refused to administer and/or properly procure immediate and adequate medical attention.

149. This delay in medical treatment for Plaintiff's injuries resulted in pain and injury that could have been prevented had Plaintiff received treatment in a timely manner.

150. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

151. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

152. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

153. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

JURY DEMAND

154. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff FRANKLYN THEN demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 5, 2022

By: 

CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES, PLLC
Attorneys for Plaintiff
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(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER GINA MESTRE, SHIELD NO. 11607, 52nd Precinct; 3016 Webster Avenue, Bronx, NY 10467

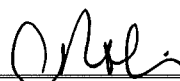
NYPD POLICE OFFICER THOMAS MULLARKEY, SHIELD NO. 5409, 52nd Precinct; 3016 Webster Avenue, Bronx, NY 10467

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 5, 2022



CAITLIN ROBIN